

ADOPTION STATE AGREEMENT FOR SPECIAL NEEDS

CHILD: (Adoptive Name)

Last Name First Name M.I.

Date of Birth Social Security #

ADOPTIVE PARENT:

ADOPTIVE PARENT:

Last Name First Name M.I.

Last Name First Name M.I.

Social Security #

Social Security #

Street Address

City State Zip

Telephone Number

The Maryland Department of Human Resources (DHR) confirms that the above referenced child (hereinafter "child") is eligible to receive adoption assistance payments for the purpose of providing ongoing financial and/or medical assistance to families of any income who adopt children with special needs.

I. ELIGIBILITY FOR STATE ADOPTION ASSISTANCE:

SPECIAL NEEDS:

_____ As the result of the following specified factor/condition, the child cannot be placed with an adoptive family without assistance payments: (check all that apply)

- _____ between 6 and 17 six years old
- _____ physical or mental disability or disease
- _____ emotional disturbance
- _____ membership in a sibling group
- _____ recognized high risk of physical or mental disability or disease
- _____ race or ethnic background if combined with any one of the above factors/conditions

II. ADOPTION ASSISTANCE TO BE PROVIDED:

The amount of the adoption assistance payment has been negotiated based on the understanding of DHR and the adoptive parent(s) as to the needs of the child and the circumstances of the family. The amount of the adoption assistance payment is contingent on the availability of State funds, and any agreement shall be subject to any change in the applicable State laws.

(Choose #1 or #2)

_____ (1) Daily rate of \$ _____ (monthly rate multiplied by 12 and divided by 365 days) and the Medicaid/Maryland Medical Assistance.

_____ (2) Maryland Medical Assistance only

III. MEDICAL BENEFITS TO BE PROVIDED:

During the period this Adoption Assistance Agreement is in effect, the child will also be eligible for medical benefits under the Title XIX Medicaid program in his/her state of residence.

The adoptive parent(s) shall immediately notify the local department if the child is, or becomes, eligible for private health insurance coverage other than Medicaid/Maryland Medical Assistance. Pursuant to Medicaid regulations the private insurance shall be considered the primary insurer but the availability of such health insurance coverage shall not affect the child's eligibility for Medicaid/Maryland Medical Assistance.

IV. CONCURRENT RECEIPT OF ADOPTION ASSISTANCE & OTHER INCOME

If the child receives State-funded adoption assistance payments and other income or Social Security benefits other than Supplemental Security Income (SSI) the child's assistance payment shall be reduced to reflect receipt of this income. If the child receives state-funded adoption assistance and SSI, the child's SSI shall be reduced dollar for dollar to reflect receipt of the adoption assistance payment. It is the responsibility of the adoptive family to notify the department of any significant change in the amount of resources available for the care of the child including funds from any government resource.

V. EFFECTIVE DATE OF AGREEMENT

The Adoption Assistance Agreement must be signed by the local department's representative and the adoptive parent(s) prior to the finalization of the adoption or the Agreement shall be void. The adoptive parent(s) agree that the monthly assistance payments and/or medical benefits to be provided under this Agreement shall begin on _____, 2_____.

VI. INTERSTATE PROVISIONS

If the adoptive parent(s) and the child move to another state or out of the Tribal service area, this Adoption Assistance Agreement shall remain in effect. The adoptive parent(s) will be referred by the local department to the appropriate Federal Title XIX and Title XX agencies in their new state of residence. The local department will provide the new state of residence, or Tribal service area with documentation regarding the child's eligibility for Medicaid and Title XX services as provided by the new state, or Tribal service area of residence. In order to protect the interests of the child, the local department will follow the procedures established by the Interstate Compact on Adoption Medical Assistance to facilitate the interstate coordination of benefits.

VII. NOTIFICATION RESPONSIBILITIES OF ADOPTIVE PARENTS & LOCAL DEPARTMENT

The adoptive parent(s) shall notify the Local Department, in writing, within thirty (30) days of the occurrence of any of the following events: the adoptive parent(s) are no longer legally responsible for the child receiving adoption assistance; the adoptive parents(s) are no longer providing financial support for the child receiving adoption assistance; the adoptive child is not residing with the adoptive parent(s); if the child enters the custody of any state agency; death of adoptive child or adoptive parents(s); a change in the address of the adoptive parents(s); any change in the educational placement status of the child receiving adoption assistance, including enrollment, withdrawal or expulsion.

The Local Department shall provide thirty (30) days written notice to the adoptive parents(s) of any proposed change in the amount, duration or frequency of the assistance stated in this Agreement.

VIII. TERMINATION OF AGREEMENT

The adoptive parent(s) agree the monthly assistance payments and/or medical benefits provided in this Agreement shall terminate in one year from the date of signing, and are subject to re-evaluation and re-approval by the Local Department. The agreement may be renewed at that time if the child continues to meet the State's "special needs" criteria, and the adoptive parent(s) continue to retain legal and financial responsibility for the child.

IX. EXTENDING ADOPTION ASSISTANCE AGREEMENT TO AGE 21

The Adoption Assistance Agreement may be extended beyond the age of 18 to the age of 21 if the State of Maryland determines;

- (A) the child has a mental or physical disability warranting the continuation of assistance; or
- (B) the child is:
 - I. completing secondary education or a program leading to an equivalent credential;
 - II. enrolled in an institution which provides post-secondary or vocational education;

- III. participating in a program or activity designed to promote, or remove barriers to, employment;
- IV. employed for at least 80 hours per month; or
- V. incapable of doing any of the above described activities due to a medical condition.

X. DEATH OR INCAPACITATION OF ADOPTIVE PARENT

Upon the death or incapacitation of the adoptive parents the assistance payments may continue to be provided on behalf of an eligible child to an adult the local department of social services determines is qualified and willing to assume responsibility for the care and welfare of the child.

XI. RIGHT TO APPEAL

The adoptive parent(s) have received notice of their right to request a contested case hearing pursuant to COMAR 07.01.04, if they disagree with a decision of the Local Department regarding the child's eligibility for adoption assistance, or the amount, duration or frequency of the adoption assistance to be provided under this Agreement. The adoptive parents(s) have the right to be represented by legal counsel at their own expense in any appeal hearing.

ANY PERSON WHO OBTAINS, ATTEMPTS TO OBTAIN, OR ASSISTS ANOTHER PERSON IN FRAUDULENTLY OBTAINING ADOPTION ASSISTANCE TO WHICH THE PERSON IS NOT ENTITLED MAY BE PROSECUTED FOR FRAUD. THE PENALTIES FOR FRAUD INCLUDE RESTITUTION, IMPRISONMENT FOR UP TO 3 YEARS AND/OR A MAXIMUM \$1000 FINE.

Adoptive Parent's Signature

Date

Adoptive Parent's Signature

Date

Director/Designee Signature

Date